

NATIONAL COMPANY LAW APPELLATE TRIBUNAL
PRINCIPAL BENCH, NEW DELHI

Comp. App. (AT) (Ins) No. 1243 of 2022

&

I.A. No. 3978, 4502, 4893 of 2022 & 1330, 1895, 2562, 3386, 3729,
4557, 4758, 5198, 5219, 6111 of 2023 & 1115, 1414, 2648, 2649,
3525, 4058, 4261, 4279, 4314, 4819, 5162, 5247, 5330, 5333, 6720,
6721 of 2024 & 913, 914, 1245, 1246, 1247, 1721, 1839, 2403, 2407,
2867, 3141, 3171, 3335, 3757, 3770, 3787, 3788, 3789, 3795, 3796,
3855, 3902, 5212, 5378 of 2025

IN THE MATTER OF:

Ashok Gupta
Suspended Director of Ajnara India Ltd.

...Appellant(s)

Versus

Manish Kumar Gupta & Anr.
(Authorized Representative for Class of Creditors)
Present:

...Respondent(s)

Mr. Abhijeet Sinha, Sr. Advocate with Mr. Sumesh Dhawan, Mr. Siddharth Bhatli, Ms. Khyati Jain, Ms. Heena Kochhar, Mr. Sagar Thakkar, Ms. Pratibha Mishra, Ms. Varsha Mohanty, Advocates.

Mr. Abhinav Vasisht, Sr. Advocate with Mr. Varun Tandon, Mr. Shivang Mukherji, Advocates for ARCIL.

Mr. Munawwar Naseem, Mr. Jaskaran Singh Bhatia, Mr. Ramaditya Singh Jadon, Advocates for IRP.

Mr. Amarpal, IRP in person.

Mr Rachit Mittal, Mr. Kanishk Raj, Advocates for Noida.

Mr. Jitendra Kumar, Advocate in IA No. 5212 of 2025, for applicant.

Mr. Prakash Priyadarshi, Advocate for applicant in IA No. 5378 of 2025.

Mr. Shivaang Gupta, Advocate for Applicant in IA No. 1414/2024.

Mr. Arvind Nayyar, Sr. Advocate with Mr. Mansumyer Singh, Advocate for Applicant in IA No. 5219/2023.

Mr. Iswar Mohapatra, Advocate for Applicant in IA No. 3795/2025.

Mr. Amit Verma, Advocate for Applicant in IA No. 6111/2023 & 5162, 5247/2024.

Mr. Amit Verma, Mr. Rahul Kr. Singh, Advocates for Applicant in IA No. 3386/23.

Mr. Chaitanya Shil Priyadarshi Priya, Advocate for Applicant.

Mr. Sanjeev Singh, Ms. Sandipa Bhattacharjee, Ms. Anshita Argal, Advocates for TCHFL.

Mr. Mohit Sharma, Advocate for YEIDA in IA No. 5330 & 5333 of 2024.

Ms. Ritika Silodiya, Advocate in IA No. 3789 of 2025.

ORDER
(Hybrid Mode)

08.01.2026: Vide order dated 08.10.2025, on the basis of the consensus arrived at between the parties we have taken a decision to dispose of the IA's pertaining to the project- 'Ajnara Ambrosia' at first.

During the course of deliberations, it is surfaced that Ld. Counsel appearing for the Suspended Directors, Lenders as well as homebuyer's association are in agreement that if an opportunity be given to them to sit together and to work out any amicable solution, a consensus may be arrived by which this complex issue pertaining to the home buyers may be resolved.

Mr. Rachit Mittal, Ld. Counsel for the Noida is present and he would not oppose any such exercise.

At this juncture, Ms. Ritika Silodiya, Advocate submits that there are certain homebuyer's, possession to whom has not been given yet and their IA No. 3789 of 2025 be disposed on priority.

Having gone through the status report submitted by RP and in view of the complexity of the issue with which we are encountered, we provide an opportunity to Ld. Counsels for the parties mentioned above (including Mr. Rachit Mittal representing Noida) to sit together on 16.01.2026 and have a meeting in the chamber of Additional CEO of Noida (main administrative building Sector-6 Noida) on 16.01.2026 at 2: 30 PM and to inform us about the outcome of the same.

The IA No. 2407 of 2025 and the status report submitted by the RP (which we have part heard) as well as the IA 3789 of 2025 indicated by Ms. Ritika Silodiya, Advocate will be taken up for hearing on the next date of listing.

List accordingly on **29.01.2026**.

[Justice Mohammad Faiz Alam Khan]
Member (Judicial)

[Naresh Salecha]
Member (Technical)

sr/mr